

Shri Gautam Motors Pvt. Ltd. v. U.P. Power Corporation Ltd. & Others

Allahabad High Court · Division Bench · 14 December 2016 · 2016 SCC OnLine All 4727 · Writ - C No. 12076 of 2004 · **Writ petition allowed; check-meter-based demand set aside**

HEADNOTE

There is no provision under the U.P. Electricity Supply Code, 2005 or the Electricity Act, 2003 by which an electricity bill can be raised on the basis of a check meter. The only question in the petition being whether a bill could be raised on the basis of a check meter, and the licensee's counsel having fairly admitted that there is no such provision, the demand raised on the strength of the inspection report / check meter was set aside.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6

No bill can be raised on the basis of a check meter

QUESTION

Can an electricity bill/demand be raised on the basis of a check meter?

HOLDING

No. There is no provision under the U.P. Electricity Supply Code or the Electricity Act, 2003 permitting a bill to be raised on the basis of a check meter (as the licensee's counsel fairly admitted). The demand of Rs. 5,93,227 raised on the strength of the inspection report / check meter is set aside. ¶ 3-6

LIMITING FACTS

Demand of Rs. 5,93,227 based on an inspection report dated 19.2.2004 for installation HP-24; the only question was the legality of billing on a check meter.

PRINCIPLE TAGS

no-billing-on-basis-of-check-meter A bill/demand cannot be raised on the basis of a check meter, there being no such provision in the Code or the Act. ¶ 5-6

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Ltd.</i> (2009) 1 ADJ 430 (DB) Allahabad High Court (Division Bench)	On the mandatory meter-testing procedure and the consumer's rights when a meter is disputed/tested.	Cited by the petitioner in support. (Digested in the corpus as SCJ-162.) ¶ 4	Petitioner	Referred
<i>Belwal Spinning Mills Ltd. v. U.P. State Electricity Board</i> (1997) 6 SCC 740 Supreme Court	On the basis on which electricity charges/dues may be levied and the limits of the Board's power to raise demands.	Cited by the petitioner in support of the challenge to check-meter billing. ¶ 4	Petitioner	Referred
<i>Tata Hydro-Electric Power Supply Co. Ltd. v. Union of India</i> (2003) 4 SCC 172 Supreme Court	On the interpretation of the statutory/tariff basis for levying electricity charges.	Cited by the petitioner in support. ¶ 4	Petitioner	Referred

